

26VECV03549 26VECV03549

County: los-angeles

Division: Civil Law and Motion

Department: O

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Case Number: 26VECV03549 Hearing Date: September 24, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

SARKIS KBJIAN,

Plaintiff,

vs.

FCA US, LLC a limited liability company;

DOES 1 through 10, inclusive,

Defendant.

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CASE NO.: 26VECV03549

ORDER

SUSTAINING IN PART PLAINTIFF'S DEMURRER TO ANSWER WITHOUT LEAVE TO AMEND

I.

BACKGROUND

Plaintiff Sarkis Kbjian

("Plaintiff") brings this lemon law action against Defendant FCA US, LLC

("Defendant"). Plaintiff alleges the 2025 Jeep Gladiator he leased did not conform to warranty.

Plaintiff demurs to

Defendant's Answer.

II.

PROCEDURAL

HISTORY

On June 17,

2026, Plaintiff filed a Complaint alleging (1) Breach of Implied Warranty Under

the Song-Beverly Warranty Act; (2) Breach of Express Warranty Obligations Under the Song Beverly Act; And (3) Violation of the Song Beverly Consumer Warranty Act.

On July 24,
2026, Defendant filed an Answer.

On August 10,
2026, Plaintiff filed the instant Demurrer.

On September
11, 2026, Defendant filed an Opposition.

As of
September 21, 2026, no reply has been filed.

III.

LEGAL STANDARD

“A party against whom an answer has been filed may object, by demurrer...to the answer upon any one or more of the following grounds: (a) The answer does not state facts sufficient to constitute a defense; (b) The answer is uncertain. As used in this subdivision, “uncertain” includes ambiguous and unintelligible; or (c) Where the answer pleads a contract, it cannot be ascertained from the answer whether the contract is written or oral.” (Code Civ. Proc. § 430.20.)[1]

A demurrer
can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.)

Under Code of
Civil Procedure § 430.30(b), an answer “shall contain (1) [t]he general or

specific denial of the material allegations of the complaint controverted by the defendant; (2) [a] statement of any new matter constituting a defense.” (Code Civ. Proc. § 430.30(b).) A statement of any new matter, therefore, is an affirmative defense; in comparison, a denial (also known as a traverse) is an allegation that shows the facts in the complaint are not true. (See Walsh v. West Valley Mission Community College Dist. (1998) 66 Cal.App.4th 1532, 1546.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court a pleading can be amended successfully. (See id.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

IV.

MEET AND CONFER

Before filing

a demurrer, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (See Code Civ. Proc. § 430.41(a), §435.5(a).) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (See Code Civ. Proc. § 430.41(a)(3).)

Plaintiff's

counsel attests he made several efforts to meet and confer but received no response from Defendant's counsel. (See Declaration of Navid Barahmand filed August 10, 2026, ¶ 3.) The Court finds Plaintiff satisfied his meet and confer obligation. The Court reminds Defendant's counsel of their obligation to reciprocate when an effort to meet and confer is made.

V.

ANALYSIS

Plaintiff

demurs to the 1st through 26th affirmative defenses asserted in

Defendant's Answer on grounds they fail to state facts sufficient to constitute a defense. Plaintiff argues each affirmative defense lacks supporting facts and merely recites legal principles. (See Dem. at 3:15-4:6.) Plaintiff argues each affirmative defense fails to comply with section 431.30(g), which requires "the several defenses shall refer to the causes of action which they are intended to answer..." (See id., at 2:12-13.)

In opposition, Defendant argues when read in conjunction with the Complaint, the defenses set forth are pled with sufficient specificity. (See Opp. at 2:8-14.) Defendant argues it pled certain affirmative defenses, including statute of limitations and failure to mitigate, to preserve them. Defendant agrees to withdraw its contributory negligence (4th), estoppel (9th), waiver (10th), and unclean hands (12th) defenses. (See id.) Defendant cites *State Farm Mut. Auto. Ins. Co. v. Superior Court* (1991) 228 Cal.App.3d 721, 725, for the proposition that because its affirmative defenses amount to a denial or traverse of Plaintiff's claims, Defendant doesn't have to allege any additional facts beyond those already alleged in the Complaint. (See id., at 3:7-14, 4:3-6.) Defendant argues should Plaintiff require evidentiary facts to support its affirmative defenses, Plaintiff can obtain this information through discovery. (See id., at 4:7-13.)

To sufficiently allege an affirmative defense in an Answer, the same pleading of "ultimate facts" rather than evidentiary matter or legal conclusions is required as when pleading the Complaint. (See *FPI Development, Inc. v. Nakashimi* (1991) 231 Cal.App.3d 367, 384.) In other words, the Answer must "aver facts as carefully and with as much detail as the facts which constitute the cause of action and which are alleged in the complaint." (Id.) Also, the various affirmative defenses must be separately stated and must refer to the causes of action to which they relate. (See Code Civ. Proc. § 431.30(g).) 2

"The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer. [Citations.] This requirement, however, does not mean that the allegations of the complaint, if denied, are to be taken as true, the rule being that the demurrer to the answer admits all issuable facts pleaded therein

and eliminates all allegations of the complaint denied by the answer.

[Citations.]" (South

Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 733.) Further, for an affirmative defense to survive a demurrer, it must only plead ultimate facts and give notice to the opposing party of the legal effect of the facts pleaded. (See Welch v. Derian (1964) 224 Cal.App.2d 750, 754.)

The Court

SUSTAINS Plaintiff's Demurrer to the Fourth, Ninth, Tenth, and Twelfth affirmative defenses WITHOUT LEAVE TO AMEND as Defendant concedes to withdraw these defenses.

The Court

will overrule the demurrer as to the other affirmative defenses. The Court finds Defendant's Answer avers facts with as much detail as alleged in the Complaint and is therefore sufficient to state its defenses. The Complaint, like the Answer, as Plaintiff argues, also generally recites legal principles. For example, the Complaint generally alleges without much detail, that the Subject Vehicle "was not merchantable because it did not have the quality that a buyer would reasonably expect, because it could not pass without objection in the trade under the contract description; because it was not fit for the ordinary purposes for which it was intended; because it was not adequately assembled; and/or because it did not or could not be conformed to the promises or affirmations of fact made to Plaintiff." (Compl., ¶ 25.) "Plaintiff delivered the Vehicle to Manufacturer or its authorized repair facility repair. The Vehicle had defects, malfunctions, maladjustments and/or nonconformities covered by the warranty that substantially impaired its value, use, or safety to Plaintiff." (Id., 37, 52.) "The acts and/or omissions of Defendants, and each of them, in failing to perform the proper repairs, part replacement, and/or adjustment, to conform the Vehicle to the applicable express warranty constitute a breach of the express warranties" (Id., 39, 56.) "Plaintiff has sustained damages equal to at least the sale Price of the vehicle." (Id., 32) Plaintiff has sustained and is entitled to consequential and incidental damages in amounts yet to be determined..." (Id., ¶ 57.) None of these allegations provide detail about the specific defects the Subject Vehicle suffered from and nature of repairs, the specific acts or omissions attributed to Defendant, or the amount and nature of consequential and incidental damages Plaintiff sustained.

The Court

finds the Answer's affirmative defenses allege facts with as much detail as the facts supporting Plaintiff's claims. For example, the fifth affirmative defense alleges "If Plaintiff sustained any damages as alleged in the Complaint, such damages were proximately caused and contributed to by Plaintiff in failing to mitigate Plaintiff's damages." (See Answer at 2.) This, when read with reference to the Complaint, refers to Plaintiff's claim for damages for at least the sale price of the Subject Vehicle. Similarly, the thirteenth affirmative defense alleges "Any failure to perform the obligations as described in the Complaint resulted from Plaintiff's failure to perform as required by the contract and/or warranty." This affirmative defense, like the allegations in Plaintiff's Complaint concerning Defendant's act or omissions, likewise does not allege the specific conduct attributed to Plaintiff. Thus, the Court finds the Answer sufficiently alleges ultimate facts with as much detail as the facts which constitute Plaintiff's causes of action and are therefore sufficiently stated.

Further, the

Court finds the affirmative defenses sufficiently refer to the causes of action which they are intended to answer. For example, the seventh affirmative defense refers to "Plaintiff's cause of action for breach of express warranty and incidental and consequential damages", the eight affirmative defense refers to "every cause of action based upon breach of implied warranty", the sixteenth affirmative defense which concerns merchantability clearly responds to the first claim which alleges the Subject Vehicle was not merchantable, and the nineteenth affirmative defense refers to all claims under the Song-Beverly Act. (See Answer.) The various affirmative defenses referring to civil penalties also clearly refer to claims for which civil penalties are available as a remedy. Thus, the Court finds the Answer complies with § 431.30(g).

Thus, the

Court SUSTAINS IN PART Plaintiff's Demurrer to the Fourth, Ninth, Tenth, and Twelfth affirmative defenses WITHOUT LEAVE TO AMEND as Defendant concedes to withdraw these defenses. The Court OVERRULES the Demurrer as to the remainder of the Answer.

VI.

CONCLUSION

Based on the

foregoing, the Court SUSTAINS IN PART Plaintiff's Demurrer to the Fourth,

Ninth, Tenth, and Twelfth affirmative defenses WITHOUT LEAVE TO AMEND as Defendant concedes to withdraw these defenses. The Court OVERRULES the Demurrer as to the remainder of the Answer.

IT
IS SO ORDERED.

DATED: September 24, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.